



Complaints & Appeals Policy

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External reference points	Office for the Independent Adjudicator Good Practice Framework Sep 2015 Data Protection Act 1998, 2018. Article 51 GDPR UK Quality Code for Higher Education June 2025, Principle 12: Providers operate processes for complaints and appeals that are robust, fair, transparent and accessible, and clearly articulated to staff and students. Policies and processes for concerns, complaints and appeals are regularly reviewed, and the outcomes are used to support the enhancement of provision and the student experience.

Version Control			
Previous Version	New Version	Date	Update/Notes
V3 (21-06-25)	V4	28-07-25	Completely rewritten to ensure it is more accessible for students and meets the new C5 OfS conditions to treat students fairly. Footnotes added to inform students that until TEC has Office for Students it will not be a qualifying provider under the OIA scheme.
V4 (28-07-25)	V5.1	01-09-26	Reformatted and added a new process flowchart in the Appendices. Updated email addresses to .ac.uk

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1. Introduction

Trent Education Centre (TEC) values student feedback and recognises the importance of addressing all student concerns quickly. Constructive criticism is welcomed as an opportunity to clarify, improve, and address issues related to the services provided by staff at TEC.

TEC is also committed to ensuring that students feel they are being treated fairly. We encourage students to speak out if they feel that TEC is not providing them with the service and support they expect to receive.

This policy sets out TEC's approach to how students can make complaints informally and formally. This includes a clear and full complaints and appeals process that ends with a completion of proceedings (COP) letter if the student remains unsatisfied. The student making a complaint (the complainant) may then take the COP letter to the Office of Independent Adjudicator (OIA) which is an external body that will consider student complaints¹.

2. Purpose and Scope

This policy sets out steps for managing student complaints promptly, fairly, and effectively. It ensures all prospective, current, and recently enrolled students feel confident in raising issues, knowing their concerns will be handled quickly, fully and fairly.

The policy applies to all of the following people who wish to complain. They are referred to in this policy as 'complainants.'

Complainants	Details
Current Students	Any student studying in any course at TEC. This includes students studying in person at one of the TEC Study Centres or online through distance learning or blended delivery.
Students from the Last Academic Year	Students who either withdrew from their course or graduated in the previous academic year. Complaints from cohorts earlier than the previous academic year may be only considered at our discretion if we believe they are reasonable.
Applicants of People Enquiring about Courses	Anyone who is applying to study at TEC and wishes to make a complaint about any staff member, service or the selection and admissions process. Applicants or people enquiring about courses may follow the procedures in this policy to complain about anything. For more information about Admissions refer to the Admissions Policy.

¹ This will only be possible if and when TEC is registered with the Office for Students as a 'qualifying provider' at which point TEC will become a member of the OIA scheme <https://www.oiahe.org.uk/about-us/ourscheme/our-members/>

3. Aims and Objectives

This policy aims to ensure that TEC manages all complaints fairly, appropriately, fully and quickly. It is our aim to ensure that all complainants are satisfied with the outcome of the complaints process through the following objectives by:

- Giving clear instructions on the complaints and appeals process.
- Helping complainant to raise concerns or make complaints informally and formally if they wish at any time.
- Informing complainants about their options including to appeal against any decision
- Giving TEC staff training and support in how to follow this policy and deal with complaints and appeals fairly, impartially, and transparently.
- Taking all concerns and complaints on board and making sure staff use them to improve and enhance the student experience where it is reasonable to do so.
- Ensuring that the complaints process and TEC's responses to concerns and complaints are reviewed on a quarterly basis by the TEC Audit and Risk Committee, which is chaired by an independent member of the TEC Board of Governors.

These objectives are informed by the Office of the Independent Adjudicator's Good Practice Framework (2015), based on eight guiding principles in relation to handling complaints:

OIA Good Practice Principles	Explanation
Accessibility	The complaints process is easy for people to find
Clarity	The complaints process is clear and not confusing
Proportionality	Decisions and actions taken as a result of complaints are appropriate and take account of reasonable expectations
Timeliness	Complaints are handled quickly and without long delays
Fairness	Everyone is treated equally and equitably during the complaints process. This means that some special considerations may be made with reasonable adjustments for people facing disadvantages such as disabled people.
Independence	Decision-makers have no conflict of interest and are objective when making their decisions.
Confidentiality	Information provided by complainants are only shared with people if they need to know, or if there are issues of safety or a criminal investigation is taking place.
Enhancing the student experience	Making sure that lessons are learned and the student experience is continuously improved or enhanced as a result.

TEC's objectives are also aligned with Principle 12 of the UK Quality Framework for Higher Education, June 2024: [Operations concerns, complaints and appeals processes](#).

4. People with Disabilities or Special Educational Needs

Reasonable adjustments will be made to accommodate people with disabilities or special circumstances who wish to raise a concern or make a complaint. TEC staff will provide appropriate support to ensure that students who disclose a disability or special educational need receive all the additional time and support they need. Complainants who believe that they need assistance may contact the following staff:

- Head of Safeguarding and Health and Safety Phone: 07868 216222
- Email: sam@trenteducation.ac.uk

5. Fair Treatment

TEC is committed to ensuring that no person will be targeted, discriminated against or face unfair treatment for raising a concern or making a complaint. This applies to all complaints apart from malicious or frivolous complaints that are designed to harm someone else unfairly and without any grounds. Complaints of this kind may lead to disciplinary action.

All parties involved in making and dealing with concerns, complaints and appeals are expected to behave respectfully and professionally. The TEC Audit and Risk Committee ensures that the complaints process helps to improve service standards at the College where possible.

See the **TEC Anti-Bullying and Harassment Policy** and **Whistleblowing Policy** for more information on the protection of people who raise concerns or make a complaint.

6. Confidentiality

All data shared during the complaints process is managed in accordance with the Data Protection Acts (1998, 2018), Article 51 of GDPR, and TEC's **Data Protection Policy** and **Data Privacy Notice and Consent Policy**.

Information will be treated with discretion and only shared when:

- Necessary to progress or resolve the concern, complaint or appeal
- Legally required or in the public interest

Complainants must accept that their complaints may be shared with relevant staff for investigation. Individuals who have concerns or complaints made against them, have the right to know the details of the concern and complaint in order to respond appropriately.

For highly sensitive concerns, complainants may contact the following staff member:

Head of Safeguarding and Health and Safety

- Phone: 07868 216222
- Email: sam@trenteducation.ac.uk

Alternatively, a complainant may contact any member staff they trust or a member of the Senior Management Team to explore ways to limit disclosure. Personal information should only be included if directly relevant, and complainants must not share the personal data of any other person without their consent.

7. Eligibility to Submit a Complaint

The following people may raise a concern or complaint using this policy or procedure

Complainants	Details
Current Students	Any student studying in any course at TEC. This includes student studying in person at one of the TEC Study Centres or online through distance learning or blended delivery.
Students from the Last Academic Year	Students who either withdrew from their course or graduated in the previous academic year. Complaints from cohorts earlier than the previous academic year may be only considered at our discretion if we believe they are reasonable.
Applicants or People Enquiring about Courses	Anyone who is applying to study at TEC and wishes to make a complaint about any staff member, service or the selection and admissions process. Applicants or people enquiring about courses may follow the procedures in this policy to complain about anything. For more information about Admissions, refer to the Admissions Policy.

Group Complaints: When multiple people are affected by the same issue, they may submit a group complaint. Each person must demonstrate how the matter affected them personally. The group must appoint one representative to act as the spokesperson and submit written consent from the other members of the group alongside the complaint.

Third-Party Submissions: Complaints must generally be submitted by the complainant themselves. Exceptions may be made if special considerations and reasonable adjustments are needed. See the section on Fair Treatment above. People must give written consent if they want someone else to make a complaint and represent them through the complaints process.

Anonymous Complaints: These are not typically accepted but may be considered at TEC's discretion. Note that anonymity may restrict the ability to investigate effectively. Staff receiving anonymous complaints should consult a member of the **Student Complaints Panel** for guidance.

Support During the Process: if a meeting is called, students may be accompanied or advised by another TEC student or staff member of their choice if they wish.

8. Types of Complaints Accepted

The table below identifies examples of different types of concerns and complaints that may be raised but there may be other concerns or complaints that are not covered here.

Types of Concerns and Complaints	Details
Academic Complaints	A concern or complaint about the quality of teaching, personal tutoring, assignments, course content, or learning resources and the virtual learning environment (VLE).
Resources Complaints	A concern or complaint about the provision and maintenance of facilities and resources provided by TEC.
Behaviour Complaints	A concern or complaint about the behaviour of a member of the TEC community including all staff, visitors, management and governors or other stakeholders
Service Complaints	A concern or complaint about the quality of a service that TEC provides or should provide but does not.
Reasonable Adjustments	A concern of complaint about the lack of special consideration or reasonable adjustments being provided to someone with a disability or special educational need.
Contract Breaches	A concern or complaint about an alleged breaches of contract or failure to comply with TEC's own policies or its legal or regulatory obligations. Students may need to consult the TEC Terms and Conditions and Tuition Fees, Refunds and Compensation Policy in particular if they are concerned about a breach of contract.
Other	There may be a number of other types of concern or complaint not covered here.
Mixed Issues	A combination of any of the above.

9. Academic Appeals

This **Complaints and Appeals Policy** does not deal with any concern or complaint about the marks and feedback on student work. If a student wishes to raise a concern about the fairness or accuracy of marking and feedback on their assessed work, they may do this through the Academic Appeals process. For this they must refer to the **Academic Appeals Policy**. A student can make an academic appeal and a complaint at the same time, but they must follow both policies separately and use two separate processes. Students may consult a member of staff if they are unsure which policy and process to follow.

10. Advice and Support

Students are encouraged to seek guidance before lodging a complaint. Helpful contacts include:

- Tutor including their Person Tutor
- Head of Programme
- Student Safeguarding Officer
- Student Support Officer
- The Student Council

11. Complaint Submission Timeline

Complainants can make a formal complaint at any time. However, it is recommended that they try to deal with their concern or complaint informally at the earliest opportunity first. If a complainant feels that they cannot resolve the concern or complaint informally, they may submit a formal complaint at the earliest opportunity. Formal complaints may be submitted about anything that occurred in the current or previous academic year.

TEC will consider complaints by individuals who have withdrawn from their studies for whatever reason, as long as they are not related to anything that occurred more than one academic year ago. Any issues that occurred more than one academic year ago, may only be considered at the discretion of the TEC Senior Management Team.

12. Complaint Response Time

In many cases a concern or complaint can be resolved on the same day through an informal conversation with the person or people involved. In other cases, the issue may take up to a week to resolve informally if a meeting is required or more information is needed.

Complainants will receive a response to any formal complaint within seven days. The response may inform the complainant that further time is needed to investigate the complaint and/or call a meeting between the relevant people. In all cases, TEC staff aim to resolve all complaints within three weeks after the formal complaint has been made, however, this may be subject to the availability of relevant people involved.

Extensions to the response time may be required in complex cases or if staff are unavailable. Complainants will be kept informed throughout the process.

13. Procedures for Submitting a Complaint

This section explains to all complainants how they can raise a concern, make a complaint and an appeal.

You can raise a concern or make a complaint at any time using the following methods:

- Email: complaints@trenteducation.ac.uk.
- Website: [Complaint Form](#)

13.1. Stage 1

Informal, Immediate Local Resolution

Before sending an email or using the complaint form, you may be able to resolve your concerns quickly and locally by talking informally to a member of staff such as your Tutor, Student Support Officer, Safeguarding Officer or Programme Leader.

How it works:

You speak directly to the relevant staff member

The issue may be resolved very quickly with or without a small investigation

There may be a meeting arranged with you in person or online to resolve the issue

What happens next

Staff talk to the complainant on the same day and try to resolve the matter if possible and no later than seven days and try to resolve the issue quickly.

The staff member may need to liaise with other staff if the issue concerns them. If in doubt, staff should seek advice from their line manager before handling a concern or complaint.

Complaints raised in person or through email will be passed to the relevant staff member who must respond within seven days.

If the issue is complex or cannot be resolved within seven days, students may be advised to proceed to Stage 2.

Reminder

You are advised to seek informal resolution to your concern or complaint before moving to the formal procedure at Stage 2 below. However, all complainants have the right to go directly to Stage 2 and make a formal complaint if they wish.

13.2. Stage 2

Formal Complaint Resolution

If informal efforts do not solve the issue, you may make a formal complaint.

How it Works

Formal Complaint Method	Instructions
Website Complaint Form	Click on the link, complete the form and wait for a response.
Email:complaints@trenteducation.ac.uk	Submit an email to making sure you include the following information: • Give you name and student number if you have one • Explain your concern or complaint • State what steps you have taken to resolve the matter informally if any • State what you want to see happen • Add any supporting evidence you may have (e.g., relevant emails or documents)

What happens next

Expect an email with a quick response within 3 working days. This is to let you know that your complaint has been received and is being addressed by the appropriate staff.

If the concern or complaint can be addressed by a member of staff without the need for a full investigation, the staff member will respond to your concern or complaint by email within seven days of receiving the complaint.

If the complaint is more complicated and requires an investigation, you will be informed within seven days that more time may be needed to complete the investigation. This is likely to be no more than another seven days. For details on how the investigation process works see the table below.

Complaint Investigation Process

Investigation Steps	Instructions
Student Complaints Officer (SCO) Appointed	The Head of Operations assigns themselves or another member of staff as a Student Complaints Officer (SCO) to investigate the complaint. The SCO must be someone neutral who was not involved in the case.
Investigation	The Student Complaints Officer completes an investigation within seven days. If the case is complicated, or key people are unavailable, the SCO may request an extension. You will be informed by email if an extension is needed for the investigation.
Student Complaints Panel (SCP)	The SCO may invite you to attend a meeting with the Students Complaints Panel (SCP), where you can discuss your complaint. The SCO includes at least two of the following members: Student Complaints Officer Head of Operations Head of Compliance You will be invited to bring one other person with you to the meeting. This may be a colleague, member of staff, a friend or family member. The meeting is voluntary and you can refuse the invitation if you wish. Minutes of the meeting will be taken by a neutral member of staff and shared with all members for approval. The SCP will reach its decision about what action to take no more the three days after the meeting whether you attended or not.
Mediation	The SCP may also offer to act as a mediator between you and the person or people you may be complaining about. You will be invited to bring one other person with you to the mediation. This may be a colleague, member of staff, a friend or family member. The mediation is voluntary for both parties and you or the person you are complaining about can refuse the invitation if they wish. Minutes of the mediation will be taken by a neutral member of staff and shared with all members for approval. The SCP will reach its decision about what action to take no more the three days after the mediation whether you attended.
Outcome	The SCO will send an email to you explaining the outcome of the investigation and/or mediation. The outcome may be one of the following: The complaint is upheld fully or partially, and the SCO will set out what steps will be taken to remedy the matter The complaint is dismissed We aim to complete the whole process within ten days unless an extension is required because of the complexity of the case, if mediation is advised, or if key people are unavailable.

13.3. Stage 3 – Appeal and Review

If a student is not satisfied with the outcome of Stage 2, they may request a formal review and hearing by the Student Complaints Review Panel (SCRP).

How it works

Hearing Steps	Instructions
When to appeal	You may submit an appeal within 14 days after receiving the outcome of your Stage 2 complaint.
How to appeal	Submit your appeal by email to: complaints@trenteducation.ac.uk You will receive a response within three days informing you about the next steps.
What to include when you appeal	In your email you need to provide the following: Explain why you feel the Stage 2 outcome was not correct or fair and why you are not satisfied. Provide any evidence you may have that was not provided or considered by the SCO or the SCP
Student Complaints Review Panel (SCRP) Hearing.	The SCRCP will try to review your case within seven days. It may take longer if they decide to invite you to attend a hearing where you can make your appeal against the decision of the SCO or SCP. The SCRCP includes at least two of the following members, with any one of them acting as Chair: The Managing Director The Executive Principal One other neutral member of the Senior Management Team who was not previously involved in the case You will be invited to bring one other person with you to the hearing. This may be a colleague, member of staff, a friend or family member. The hearing is voluntary and you can refuse the invitation if you wish. At the hearing, the SCRCP may ask witnesses to appear and give evidence including any people you may be complaining about. Minutes of the hearing will be taken by a neutral member of staff and shared with all members for approval. The SCRCP will reach its decision about what action to take no more than three days after the hearing whether you attended or not.
Outcome	The Chair of the SCRCP will send an email to you explaining the outcome of the hearing. The decision of the SCRCP will be final. The outcome may be one of the following: The appeal is upheld fully or partially and the SCRCP will set out what steps will be taken to remedy the matter The appeal is dismissed We aim to complete the whole process within ten days unless an extension is required because of the complexity of the appeal, or if key people are unavailable.

14. Complaints to External Bodies

14.1. Complaints to the Pearson Awarding Organisation

Students who are enrolled into TEC's Pearson BTEC HND courses can make a complaint about TEC or their course to the awarding organisation at any time by following the link below. It is advisable for students to first raise their concern or complaint with staff at TEC using the procedures above from Stage 1 to Stage 3 before contacting the Person awarding organisation.

<https://support.pearson.com/uk/s/article/Students-Feedback-and-complaints>

14.2. Office of the Independent Adjudicator (OIA)

If a student remains dissatisfied after Stage 3, they may escalate the matter externally to the Office of the Independent Adjudicator for Higher Education (OIA) provided it meets OIA's eligibility criteria.²

How it Works

Once you have completed Stage 3, TEC will provide you with a Completion of Procedures Letter (COP)²

- You must submit your complaint to the OIA within 12 months after receiving the COP.
- You will find guidance at: www.oiahe.org.uk

15. Recording, Reporting, and Organisational Learning

Minute Taking

- A neutral staff member records minutes during all formal meetings including meetings of the
- Student Complaints Panel (SCP) and the Students Complaints Review Panel (SCR) Hearings
- All attendees, including the complainant and panel members, review and sign off on the final version
- Disputes must be resolved at the time; no changes are accepted once the minutes are signed

Monitoring Complaints and Appeals

Records of Stage 2 complaints and Stage 3 appeals are passed to the Student Support Manager, and an anonymised quarterly review of all the data is submitted to the Audit and Risk Committee so that trends can be identified that will inform improvements and enhancements.

The aim is to use insights from complaints to refine policies, training, and student services

Data Handling

All records of complaint and concerns are stored and disposed of in line with the College's Data Privacy Notice and Consent Policy and Data Retention Policy

² This will only be possible if and when TEC is registered with the Office for Students as a 'qualifying provider' at which point TEC will become a member of the OIA scheme <https://www.oiahe.org.uk/about-us/ourscheme/our-members/>

Appendix 1: Student Complaints Online Statement

The following information must be placed on the TEC website

If you are a student or if you are applying to study are at Trent Education Centre (TEC), you can complain to us about anything you are not satisfied with here: complaints@trenteducation.ac.uk.

When you submit a complaint by email, you need to give us the following information:

- Tell us your name and student number if you have one
- Explain your concern or complaint
- State what if any steps you have taken to resolve the matter informally
- State what you want to see happen
- Add any supporting evidence you may have (e.g., relevant emails or documents)

If you prefer, you may find it easier to fill in the [Complaint Form](#) on our website instead.

We will respond to you within three days after receiving your email or complaint form and let you know what steps we will take to try and resolve the issue.

Please read our Complaints and Appeals Policy for more information.

Where possible, your details will remain confidential, and you will not be penalised for making a complaint. We welcome fair and constructive criticism from students and applicants that helps us to improve our services.

What will happen next?

After you have sent us your complaint by email or using the complaint form, we will contact you within three days to let you know the next steps and how long it might take. We aim to resolve all complaints withing 10 days if possible and no later than a maximum of 21 days in total.

Appendix 2: Completion of Procedures (COP) Letter Template³

Please note - the format may be adjusted to meet the individual circumstances of a complaint provided that the key points below are included.

Dear [Name of complainant],

RE: Completion of Procedures Letter

This letter confirms that the internal procedures of Trent Education Centre in relation to your complaint/ appeal etc* regarding [please describe] have been completed.

The issues that you raised in your complaint / appeal etc* were [details]

The issue(s) that were considered in relation to your complaint / appeal etc was / were*: [brief summary of the complaint etc].

The final decision of [Trent Education Centre] is* [detail] because [reasons].

The procedures / regulations applied were*: [details and date as supplied to the OIA's electronic Regulations Bank].

If Trent Education Centre subscribes to the independent scheme for the review of student complaints, you will be able to apply for a review of your complaint / appeal to the Office of the Independent Adjudicator for Higher Education (OIA) provided that the complaint you take to the OIA is eligible under its Rules.

Should you decide to make a complaint to the OIA, your OIA must be received by the OIA within 12 months of the date of this letter, that is, it must be received by the OIA on or before [insert date - e.g. if the Completion of Procedures Letter is dated 9 May 2026, this date should be 9 May 2027].

[Include here any factors of which the provider is aware which mean that it is particularly important for the student to bring the complaint promptly.]

You can fill in the OIA's online or download a copy from the OIA website.

<https://www.oiahe.org.uk/students/how-to-complain-to-us/>. The OIA also publishes An Introduction to the OIA Scheme for Students, which can be downloaded from <https://www.oiahe.org.uk/students/canyou-complain-to-us/>. Alternatively, you can telephone or write to the OIA for a form. You should send a copy of this letter [optional - and our final decision] to the OIA with your OIA .

Guidance on submitting a complaint to the OIA and the OIA can also be found on the OIA's website <https://www.oiahe.org.uk/students/how-to-complain-to-us/>. You may also wish to seek advice from the Students' Union about taking your complaint to the OIA.

Please note that the OIA will normally only review issues that have been dealt with through the provider's internal procedures.

Yours sincerely, [Managing Director]

³ This will only be possible if and when TEC is registered with the Office for Students as a 'qualifying provider' at which point TEC will become a member of the OIA scheme <https://www.oiahe.org.uk/about-us/ourscheme/our-members/>

Appendix 3: Flow Chart of the TEC Complaints Process

The following three-stage complaint process includes expected waiting times for each stage of the process. Complainants should be aware that these waiting times may vary depending upon the availability of people and evidence as well as the complexity of the matter being investigated. Staff will keep complainants fully informed of expected waiting times throughout the process. At all time staff will aim to complete each stage as quickly and fully as possible.

Stage One: Informal Concern or Complaint Tell someone about your concern or complaint and staff will try to resolve it on the same day if possible and no later than seven days .	
	
Accept the Decision	Stage Two: Formal Complaint If you are not satisfied with the outcome at Stage One you can send an email tcomplaints@trentedcuation.ac.uk or complete our online Complaint Form on our website. We will respond in three days to let you know the next steps and we will try to resolve the matter in seven days after receiving the complaint.
	
Stage Two: Investigation We will appoint a Student Complaints Officer (SCO) to investigate the complaint and send you the outcome within seven days. If the case is complicated, the SCO may invite you to a meeting with the Student Complaints Panel (SCP) and the SCP may offer to mediate between you and the person or people you are complaining about. The SCO will let you know the decision of the SCO within three days after the meeting.	
	
Stage Three: Appeal, Review and Hearing If you are not satisfied with the outcome at Stage 2, you have 14 days to send an appeal by email to complaints@trentedcuation.ac.uk . We will respond in three days to let you know the next steps and we will try to resolve the matter in seven days after receiving the complaint.	
Stage Three: Student Complaints Review Panel (SCRCP). The Student Complaints Review Panel (SCRCP) will review your case and try to reach a decision within seven days. It may take another seven days if they decide to invite you to a hearing. You will receive the decision of the SCRCP three days after the hearing together with a Completion of Proceedings (COP) Letter. ⁴	
	
Accept the Decision	If you are still not satisfied with the outcome, you can take the COP to the Office of the Independent Adjudicator (OIA). ⁴ You may also make a complaint to the Pearson Awarding Organisation if you are study for a BTEC HND.

⁴ This will only be possible if and when TEC is registered with the Office for Students as a 'qualifying provider' at which point TEC will become a member of the OIA scheme <https://www.oiahe.org.uk/about-us/ourscheme/our-members/>